



CHAPTER 7.

An Act to facilitate the proceedings of the Commissioners appointed to hold an Investigation respecting War Stores in South Africa. A.D. 1905.
[11th July 1905.]

WHEREAS a Commission has been issued by His Majesty whereby the Honourable Mr. Justice Farwell, the Right Honourable Sir George Taubman-Goldie, K.C.M.G., Field Marshal Sir George White, G.C.B., Sir Francis Mowatt, G.C.B., and Samuel Hope Morley, Esquire (herein-after referred to as "the Commissioners"), have been authorised and directed to investigate and report upon the allegations made in the report of the committee presided over by Lieutenant-General Sir W. F. Butler, K.C.B., dated May 22nd last; and all the circumstances connected with contracts, sales, and refunds to or by contractors in South Africa or elsewhere after the conclusion of peace, and any previous transactions which may throw light on them; and further to report upon the responsibility of the persons concerned, whether in this country or in South Africa:

And whereas it is desirable to make provision for the more effective conduct by the Commissioners of any investigation which they may be authorised to make:

Be it therefore enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1.—(1) The Commissioners shall have all such powers, rights, and privileges as are vested in the High Court or in any judge thereof, on the occasion of any action in respect of the following matters:— Powers of Commissioners.

- (i) The enforcing the attendance of witnesses and examining them on oath, affirmation, or otherwise, and the issue of a commission or a request to examine witnesses abroad; and
- (ii) The compelling the production of documents; and
- (iii) The punishing persons guilty of contempt;

and a summons signed by one or more of the Commissioners may be substituted for and shall be equivalent to any formal process

A.D. 1905. — capable of being issued in any action for enforcing the attendance of witnesses and compelling the production of documents.

(2) A warrant of committal to prison issued for the purpose of enforcing the powers conferred by this section shall be signed by one or more of the Commissioners, and shall specify the prison to which the offender is to be committed, but shall not authorise the imprisonment of an offender for a period exceeding three months.

(3) Every person who on examination on oath or affirmation before the Commissioners wilfully gives false evidence shall be liable to the penalties for perjury.

Indemnity to witnesses.

2.—(1) A person examined as a witness by the Commissioners shall not be excused from answering any question put to him, or from producing any document, on the ground that the answer thereto or production thereof may criminate or tend to criminate him.

(2) Every person examined as a witness who, in the opinion of the Commissioners, makes a full and true disclosure touching all the matters in respect of which he is examined, shall be entitled to receive a certificate signed by the Commissioners, stating that the witness has, on his examination, made a full and true disclosure as aforesaid.

(3) If any criminal proceeding (including a proceeding by court-martial) is at any time thereafter instituted against any such witness, in respect of any matter touching which he has been so examined, the court having cognizance of the case shall, on his application, and on proof of the certificate, stay the proceeding.

(4) Nothing in this section shall apply to the case of proceedings for having given false evidence before the Commissioners, or of having procured, or attempted or conspired to procure, the giving of such evidence.

Short title and extent.

3.—(1) This Act may be cited as the War Stores (Commission) Act, 1905.

(2) This Act shall apply only with respect to sittings of the Commissioners in the United Kingdom.

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FOR

ROWLAND BAILEY, Esq., M.V.O., I.S.O., the King's Printer of Acts of Parliament.